

TENTATIVE RULING

Case: **Ballejos v. Safelite Fulfillment, Inc. et al.**
Case No. CV2025-2879

Hearing Date: **April 22, 2026** **Department Eleven** **9:00 a.m.**

The Court rules on defendants Safelite Fulfillment, Inc., Safelite Fulfillment, LLC, (collectively, “Safelite”) and Yael Torrez’s (“Torrez”) demurrer to plaintiff Xavier Ballejos’ first amended complaint (“FAC”) as follows:

- Safelite and Torrez’s demurrer to the first cause of action for physical disability harassment is **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute this cause of action. (Govt. Code §§ 12940, subd. (j), 12923; *Doe v. Department of Corrections & Rehabilitation* (2019) 43 Cal.App.5th 721, 736; *Janken v GM Hughes Electronics* (1996) 46 Cal.App.4th 55, 63; see *Ortiz v. Dameron Hospital Assn.* (2019) 37 Cal.App.5th 568, 581; *Thompson v. City of Monrovia* (2010) 186 Cal.App.4th 860, 876; CACI No. 2521A; FAC ¶¶ 31-33, 40, 47-56.)
- Safelite and Torrez’s demurrer to the eighth (CFRA interference) and ninth (CFRA retaliation) causes of action are **SUSTAINED WITH LEAVE TO AMEND**. (Code Civ. Proc., § 430.10, subd. (e); *Blank v. Kirwan* (1985) 39 Cal.3d 311, 318.) The Court finds that plaintiff’s FAC fails to state facts sufficient to constitute these causes of action. (Govt. Code § 12945.2, subds. (a), (k)(1); *Moore v. Regents of University of California* (2016) 248 Cal.App.4th 216, 250 [a plaintiff alleging a CFRA interference claim under Government Code section 12945.2(a) must prove two elements: (1) the employee’s entitlement to CFRA leave rights; and (2) the employer’s interference with or denial of those rights]; *Dudley v. Department of Transportation* (2001) 90 Cal.App.4th 255, 261 [a plaintiff alleging a CFRA retaliation claim Government Code section 12945.2(k)(1) must prove four elements: (1) the defendant was an employer covered by CFRA; (2) the plaintiff was an employee eligible to take CFRA leave; (3) the plaintiff exercised the right to take leave for a qualifying CFRA purpose; and (4) the plaintiff suffered an adverse employment action because of the exercise of the right to CFRA leave]; *Faust v. California Portland Cement Co.* (2007) 150 Cal.App.4th 864, 885.) Specifically, the Court finds that plaintiff fails to allege facts that he was eligible to take CFRA leave. (*Dudley, supra*, 90 Cal.App.4th 255, 262; FAC ¶¶ 10-16, 114-115, 123-124.)
- Safelite and Torrez’s demurrer to the eleventh (failure to pay minimum wages), twelfth (failure to pay overtime wages), thirteenth (failure to pay wages owed), fourteenth (meal period liability), fifteenth (rest period liability), sixteenth (failure to provide accurate, itemized wage statements), and seventeenth (waiting time penalties) causes of action as to Torrez are **OVERRULED**. (Code Civ. Proc., § 430.10, subd. (e).) The Court finds that plaintiff has stated facts sufficient to constitute these causes of action against Torrez. (Labor Code § 558.1; FAC ¶¶ 5, 41-44, 137-177.)

Plaintiff may file an amended complaint by no later than May 4, 2026. (Cal. Rules of Court, rule 3.1320(g).)

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.

TENTATIVE RULING

Case: **Rocky Top Rentals, LLC v. Munoz**
Case No. CV2022-1949

Hearing Date: **April 22, 2026** **Department Eleven** **9:00 a.m.**

Plaintiff Rocky Top Rentals, LLC's unopposed motion to enforce writ of possession is **GRANTED**. (Code Civ. Proc., § 700.080, subd. (c); Mika decl., ¶¶ 3-9; Zelenka-Diatikar decl., ¶¶ 11-13.)

The notice of motion does not provide notice of this Court's tentative ruling system as required by Local Rule 11.2(b). Counsel for moving party, or the moving party if unrepresented by counsel, is ordered to notify the opposing party or parties immediately of the tentative ruling system.

If no hearing is requested, and no party appears at the hearing, this tentative ruling is effective immediately. No formal order pursuant to California Rules of Court, rule 3.1312 or further notice is required.